

KILMADE v KAISER ENTERPRISES, INC.

24CV47369

REVIEW OF PROPOSED CLASS ACTION DISTRIBUTION

Based on the Declaration of Nick Castro filed on June 25, 2026, the Court finds all settlement funds have been properly disbursed. In light of the deadline for cashing of settlement checks, **this matter is scheduled for an OSC re Dismissal on January 27, 2027, at 1:30 p.m. in Dept. 4.**

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required.

**WALKER, et al v TAYLOR AND CLARK, TRUSTEES OF
DOUBLE SPRINGS RANCH TRUST, et al**

24CV47475

**DEFENDANTS/CROSS-COMPLAINANTS' MOTION FOR
SUMMARY JUDGMENT/SUMMARY ADJUDICATION**

This civil action stems from dispute concerning an easement and questions over title to a certain stretch of property. Randy Walker ("Walker") and Jessica Albonico ("Albonico") (collectively, "Plaintiffs") filed this action to determine the parties' respective rights and duties as well as to quiet title.

Defendants are neighboring landowners: Jody A. Taylor ("Taylor") and Sharon L. Clark ("Clark") Trustees of the Double Springs Ranch Trust; Carol A. Gates, Trustee of the Carol A. Gates Family Trust ("Gates"); Perry Williard ("Perry"); Cheryl Willard; ("Cheryl") Alden R. Houbein and Virginia A Houbein, Trustees of the Houbein Revocable Trust DTD March 21, 1996 ("Houbeins"); John M. Taylor, Katherine L. Taylor, and Mark Van Lobel Sels and Mary Van Lobel Sels (collectively "Van Loben Sels").

On April 29, 2025, Taylor and Clark as Trustees, Gate as Trustee, and the Van Lobel Sels filed a Cross-Complaint against Plaintiffs for declaratory relief, quiet title, trespass, permanent injunction, and abuse of process. For ease of reference, the Court refers to the cross-claiming defendants collectively as "Cross-Complainants."

On July 11, 2025, the Court entered a preliminary injunction against Plaintiffs prohibiting them from entering, traversing, or performing any acts of use upon the Cross-Complaints' property and any real property described in the Complaint to prevent the creation of a prescriptive easement under civil code 1007 pending a full hearing.

Now before the Court is a motion for summary judgment/adjudication brought by Cross-Complainants. The motion is opposed.

I. Background

The background facts are taken from the Cross-Complainant's Separate Statement ("UMF") and Plaintiff's Separate Statement of Additional Facts ("PUMF") and the documents referenced therein.

In 1929, Mary Linn Walker and Charles H. Walker ("Walkers") executed a satisfaction of judgment to sell 60 acres to the City of Stockton which did not include an access